

COLLECTION · BUYERS

Buying a Condo in Co-Ownership

*Declaration, contingency fund and fees — buy
with no bad surprises*

READ BEFORE YOU BEGIN

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Buying a Condo in Co-Ownership · Collection Buyers · Guide No. 05 · 2026 Edition

Buying a Condo in Co-Ownership

Declaration, contingency fund and fees — buy with no bad surprises

The condo appeals through its simplicity: less maintenance, often well located, an affordable gateway to ownership. But buying in co-ownership also means buying a share of a collective organization — with its finances, its rules and its history.

This guide teaches you to read what really matters: the declaration of co-ownership, the health of the contingency fund, the maintenance logbook, the insurance and the meeting minutes. That's where the good deals hide... and the costly traps.

Each chapter ends with a “My notes” page to record what you discover about YOUR target co-ownership.

The condo appeals through its entry price and low maintenance, but it comes with a collective life and rules you must understand before signing. This guide teaches you to read a building: its declaration, its contingency fund, its insurance and its meeting minutes.

The guiding idea: in co-ownership, you're not just buying walls, you're buying management. This guide gives you the grid to assess it.

CHAPTER

Divided co-ownership: how it works

Understanding what you're really buying in a condo.

In a divided co-ownership (the classic “condo”), you are the exclusive owner of your unit (the private portion) AND a co-owner of the common portions (roof, structure, hallways, land, sometimes parking and storage). Your share determines your voting weight and your part of the fees.

The syndicate of co-owners manages the building: it collects the fees, maintains the common portions, takes out insurance and enforces the bylaws. Buying a condo therefore means joining this community and its decisions.

Buying a condo means buying two things at once: your unit and a share of a community. So you inherit common rules and a collective financial health that directly affect your comfort and resale value. Hence the importance of examining the building as much as the apartment.

EMILIE'S TIP

A condo is never “maintenance-free”: the maintenance is simply pooled and paid through the fees. A well-managed co-ownership is worth gold; a poorly managed one can cost a great deal.

CHAPTER

The declaration of co-ownership and the bylaws

Reading the building's “social contract” before buying.

The declaration of co-ownership is the founding document. It defines the private and common portions, the shares, the rights and obligations, and the building's bylaws.

What to check in it

- Are pets allowed? Are there restrictions on size or breed?
- Is renting (including short-term, Airbnb-style) allowed or limited?
- Are there restrictions on renovations, floor coverings, BBQs, noise?
- How are special assessments and important decisions shared out?

These rules will bind you from the moment you buy. Better to know them before signing than to discover them after adopting a dog or planning to rent.

Read especially the rules that affect your daily life: pets, noise, renting (especially short-term), renovations, use of balconies and common areas. A restrictive declaration can thwart your plans; conversely, clear rules protect the building's peace and value.

EMILIE'S TIP

If you plan to rent your condo one day (even occasionally), check IN BLACK AND WHITE what the declaration allows. Many co-ownerships prohibit or cap renting.

CHAPTER

The contingency fund: the crux of the matter

Assessing the co-ownership's financial health to avoid special assessments.

The contingency fund is the collective savings meant for major future repairs (roof, façade, elevator, windows, garage). If it's under-funded, the co-owners will one day have to pay a “special assessment” — sometimes several thousand dollars per unit, all at once.

The right reflexes

- Ask for the current amount of the contingency fund and the history of assessments.
- Check whether there is a recent contingency fund study (it projects the work and the sums needed).
- Consult the maintenance logbook: what major work has been done, what's coming up?
- Be wary of an older building with very low fees: it's often a sign of an insufficient fund.

2026 edition note: Quebec regulation has strengthened the obligations regarding the contingency fund study and the maintenance logbook. Have the notary confirm what applies to your co-ownership.

Since the recent reforms, co-ownerships must plan their reserves better through a contingency fund study. A well-stocked fund signals sound management; a weak fund heralds special assessments. Ask for the fund amount, the budget and the assessment history before you make an offer.

EMILIE'S TIP

Abnormally low fees are not a bargain: it's often a deferred bill. I always prefer a co-ownership with realistic fees and a solid fund.

CHAPTER

Insurance and meeting minutes

Understanding who insures what and reading the history of decisions.

In co-ownership, the syndicate insures the building and the common portions; you must insure your belongings, your improvements and your civil liability (condo owner's insurance). In the event of a claim, the syndicate's insurance deductible can, in some cases, be charged back to you: look into it.

The meeting minutes

The minutes of the latest meetings are a gold mine: ongoing conflicts, work voted on or postponed, recurring problems (leaks, soundproofing), the general mood of the co-ownership. Read at least the last two or three years.

Also check the syndicate's insurance (amount, deductibles) and your own needs: in the event of a claim, the building's deductible may be charged back to you. The minutes of the latest meetings reveal tensions, upcoming work and important decisions — a read that's worth gold.

EMILIE'S TIP

Read the minutes like the building's diary. Repeated squabbles or endlessly postponed work say far more than any beautiful kitchen.

CHAPTER

Reviewing the documents before finalizing

Making your offer conditional on a full review of the co-ownership file.

Make the review of the co-ownership documents a condition of your promise to purchase. You'll obtain (often via the seller, the syndicate or a "certificate of insurance/status of the co-ownership") all the documents to analyze.

Your review kit

- Declaration of co-ownership and building bylaws.
- Financial statements, budget and the amount of the fees.
- Contingency fund, fund study, maintenance logbook.
- Minutes of the latest meetings.
- Insurance certificate and status of any special assessments.

If a document reveals a risk (empty fund, major litigation, imminent unfunded work), the condition lets you renegotiate or withdraw.

Make the document review a written CONDITION of your promise to purchase, with enough time. A notary or an expert can help you decode the maintenance logbook, the declaration and the finances. Better to walk away in time than to inherit a poorly managed building.

EMILIE'S TIP

Never sign for a condo without having read its financial documents. Your broker and, if needed, your notary can help you decode what's normal... and what should make you run.

IN PRACTICE

Action plan

Your next steps, concretely.

This week

1. Ask for the declaration of co-ownership and the amount of the fees.
2. Get the contingency fund balance and the recent meeting minutes.

Within 30 days

1. Have the whole co-ownership file reviewed before the conditions expire.
2. Take out suitable condo owner's insurance (including the syndicate's deductible).

Next

1. Confirm with Emilie and the notary any questionable point in the file.

Documents to obtain

1. Declaration of co-ownership, bylaws, latest budget and financial statements.
2. Contingency fund study and minutes of the last two years.

REFERENCES

Resources & glossary

- Syndicate of co-owners: the entity that manages the building and the common portions.
 - Share: portion of ownership of the common areas determining fees and votes.
 - Contingency fund: collective savings for major work.
 - Contingency fund study: projection of the work and the sums needed.
 - Maintenance logbook: register of work done and upcoming.
 - Special assessment: an exceptional sum requested when the fund is insufficient.
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- Private / common portion: your unit vs the shared spaces.
 - Share: your part of the fees and votes, per the declaration.
 - Contingency fund: collective reserve for major repairs.
 - Special assessment: a one-time contribution when the fund is not enough.
 - Maintenance logbook: history and planning of the building's work.

GOING FURTHER

Quiz — test your knowledge

1. In a condo (divided co-ownership), you own:

- A) Only the common portions
- B) Your private unit AND a share of the common portions
- C) The whole building
- D) Nothing, you rent

2. The contingency fund is used to:

- A) Pay the current fees
- B) Fund major future repairs
- C) Repay your mortgage
- D) Pay the Welcome Tax

3. Abnormally low fees in an old building often signal:

- A) A bargain
- B) A possibly insufficient contingency fund
- C) Good management
- D) Nothing

4. A special assessment is:

- A) A discount
- B) An exceptional sum requested from the co-owners
- C) A municipal tax
- D) A dividend

5. The declaration of co-ownership sets out notably:

- A) The resale price
- B) The rules (pets, renting, renovations) and the shares
- C) Your mortgage rate
- D) The weather

6. Before buying, you must read the meeting minutes because:

- A) They set the price
- B) They reveal litigation, work and the building's mood
- C) They replace the inspection
- D) They are mandatory to sign

7. In co-ownership, you must personally insure:

- A) The building's roof
- B) Your belongings, improvements and civil liability
- C) The hallways
- D) Nothing

8. Reviewing the co-ownership documents should be:

- A) Optional after the purchase
- B) A condition of the promise to purchase
- C) Done by the neighbour
- D) Ignored

9. If you want to rent your condo, first check:

- A) The colour of the walls
- B) What the declaration of co-ownership allows
- C) The price of coffee
- D) The school tax

Answer key

- 1. **B** — Private portion + a share of the commons (ch. 1).
- 2. **B** — It's the savings for major work (ch. 3).
- 3. **B** — The bill for the work is probably deferred (ch. 3).
- 4. **B** — It arises when the fund isn't enough (ch. 3).
- 5. **B** — It's the founding document and its bylaws (ch. 2).
- 6. **B** — It's the history of decisions and problems (ch. 4).
- 7. **B** — The syndicate insures the commons, you insure the rest (ch. 4).
- 8. **B** — It lets you renegotiate or withdraw if there's a risk (ch. 5).
- 9. **B** — Many co-ownerships limit renting (ch. 2).

Signé PAR Em

*Thank you for reading. May this guide help you
decide with confidence, with all the information
in hand.*

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